

Number 28 *of* 2006

ROAD TRAFFIC AND TRANSPORT ACT 2006

REVISED

Updated to 4 October 2018

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All Acts up to and including *Mental Health (Renewal Orders) Act 2018* (23/2018), enacted 3 October 2018, and all statutory instruments up to and including *Road Transport (Operator's Licence Application) Regulations 2018* (S.I. No. 398 of 2018), made 4 October 2018, were considered in the preparation of this Revised Act.

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ROAD TRAFFIC AND TRANSPORT ACT 2006

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AN ACT TO AMEND AND EXTEND PART III OF THE ROAD TRAFFIC ACT 1994 AND TO MAKE PROVISION FOR THE MINISTER FOR TRANSPORT TO GRANT LICENCES TO ROAD HAULAGE AND ROAD PASSENGER TRANSPORT OPERATORS AND TO PROVIDE FOR CONNECTED MATTERS.

[4*th October*, 2006]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

Obligation to provide specimen following arrest, etc.

1.F1**[**...**]**

Road haulage and road passenger transport operators' licences.

2.— (1) The Minister may grant, on application, to a person—

(*a*) an international road haulage operator's licence that—

(i) entitles the holder to carry on a road haulage business for hire or reward within the State, and

(ii) qualifies the holder to carry on a road haulage business for hire or reward outside the State,

with such vehicles as may be specified on the licence,

(*b*) a national road haulage operator's licence that entitles the holder to carry on a road haulage business for hire or reward within the State with such vehicles as may be specified on the licence,

(*c*) an international road passenger transport operator's licence that—

(i) entitles the holder to carry on a road passenger transport business for hire or reward within the State, and

(ii) qualifies the holder to carry on a road passenger transport business for hire or reward outside the State,

with such vehicles as may be specified on the licence, or

(*d*) a national road passenger transport operator's licence that entitles the holder to carry on a road passenger transport business for hire or reward within the State with such vehicles as may be specified on the licence,

in accordance with *subsection (2)* and any regulation made under *subsection (6)* or any requirement of an act of an institution of the European Communities in relation to road haulage or road passenger transport (including regulations made under section 3 of the Act of 1972 giving effect to such a requirement).

(2) An applicant for an operator's licence shall satisfy the Minister that he or she F2**[**is of good repute, is established in the State, has appropriate financial standing**]** and has professional competence as a road transport operator in accordance with any requirement of an act of an institution of the European Communities in relation to road haulage or road passenger transport (including regulations made under section 3 of the Act of 1972 giving effect to such a requirement).

F3**[**(2A) If the Minister considers that a person who holds an operator's licence no longer—

(*a*) satisfies the requirement that he or she is of good repute,

(*b*) is established in the State,

(*c*) has appropriate financial standing, or

(*d*) has professional competence as a road transport operator,

the Minister may withdraw or suspend the licence.

(2B) The Minister may attach terms or conditions to an operator's licence to be complied with by the holder, which may include conditions relating to vehicle safety, maintenance and standards, duties and responsibilities of transport managers or other management or drivers, environmental standards, operational safety and standards, driving and working time, employment conditions and contracts, vehicle ownership (whether owned, hired or leased), vehicle registration, taxation, tachograph calibration or insurance, notification of changes to operator details, or compliance with any requirement under this Act, the *Road Transport Act 2011*, the Road Traffic Acts 1961 to 2011, or under an act of an institution of the European Union relating to road haulage or road passenger transport or legislation giving effect to such an act, including regulations made under the European Communities Act 1972.**]**

(3) An operator's licence comes into operation on the day, and is valid for the period, stated on it.

(4) Section 1(1) of the Act of 1999 is amended by substituting for the definitions of "international road freight carrier's licence", "international road passenger transport operator's licence", "the Minister", "national road freight carrier's licence", and "national road passenger transport operator's licence", respectively, the following:

" 'international road haulage operator's licence' means an international road haulage operator's licence granted under *section 2* of the *Road Traffic and Transport Act 2006*;

'international road passenger transport operator's licence' means an international road passenger transport operator's licence granted under *section 2* of the *Road Traffic and Transport Act 2006*;

'Minister' means Minister for Transport;

'national road haulage operator's licence' means a national road haulage operator's licence granted under *section 2* of the *Road Traffic and Transport Act 2006*;

'national road passenger transport operator's licence' means a national road passenger transport operator's licence granted under *section 2* of the *Road Traffic and Transport Act 2006*;".